

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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ELLIOTT SMALLS,

Plaintiff,

JURY TRIAL
DEMANDED

-against-

COMPLAINT

THE CITY OF NEW YORK; NEW YORK CITY POLICE
DEPARTMENT OFFICER NGAI of the 79th Precinct; NEW
YORK CITY POLICE OFFICERS JOHN DOE 1-4, individually
and in their official capacity ((the names John Doe being
fictitious, as the true names and numbers are presently unknown),

ECF CASE

Defendants.

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Plaintiff ELLIOTT SMALLS, by his attorney CHRISTOPHER H.
FITZGERALD, complaining of the defendants, respectfully alleges the following:

I. PRELIMINARY STATEMENT

1. Plaintiff ELLIOTT SMALLS, ("Plaintiff"), brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to the statutory and common law of the State of New York for assault and battery, negligence, intentional infliction of emotional distress, and negligent hiring and supervision.
2. Plaintiff also brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

II. JURISDICTION

3. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(3) and (4) and the aforementioned statutory and constitutional provisions.
4. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that gives rise to the federally based claims and causes of action.

III. VENUE

5. Venue is proper for the United States District Court for the Eastern District of New York, pursuant to 28 U.S.C. §§ 1391(a), (b), and (c) and §1402(b), where the plaintiff resides and the defendant CITY of NEW YORK maintains its relevant places of business, and where the majority of the actions complained of herein occurred.

IV. JURY DEMAND

6. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

V. THE PARTIES

7. That at all times hereinafter mentioned, the plaintiff was a resident of the County of the Kings, City and State of New York.

8. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
9. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
10. That at all times hereinafter mentioned, defendants NEW YORK CITY POLICE OFFICER NGAI of the 79th PRECINCT (“NGAI”) and NEW YORK CITY POLICE OFFICERS JOHN DOE (“JOHN DOES”) 1-4 were and still are employed by the NEW YORK CITY POLICE DEPARTMENT.
11. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of the plaintiff within the time required by General Municipal Law §50(e).
12. That on or about December 11, 2014, a hearing was conducted by the CITY OF NEW YORK pursuant to General Municipal Law §50(h).
13. That at all times hereinafter mentioned, the defendant officers were acting within the scope and course of their employment with the New York City Police Department, and under color of state law.
14. That at all times hereinafter mentioned, all of the actions of defendants NGAI and JOHN DOES 1-4 alleged herein were done within the scope and course of their employment with the New York City Police Department.

15. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

VI. STATEMENT OF FACTS

16. On or about the date of May 22, 2014, at approximately 8:30pm, plaintiff ELLIOTT SMALLS ("SMALLS") was lawfully inside the premises located at 1031 Myrtle Avenue, County of Kings, City and State of New York.
17. At that time and on that date, plaintiff was an invited guest of his son, Antwan Mackins.
18. Antwan Mackins ("Mackins") was, and still is, a lawful resident of 1031 Myrtle Avenue, also known as the Sumner Houses.
19. At all times of incident giving rise to this action, plaintiff was in the presence of Mackins, and remained his invitee.
20. On the date in question, plaintiff and his son entered the Sumner Houses and proceeded upstairs to go to Apartment 7C, where Mackins resided with his mother, Winifred Mackins.
21. As they tried to enter the apartment using a key, it became apparent to plaintiff and his son that the security chain had been engaged on the door by someone inside the apartment, preventing entry even by those with keys to the apartment.
22. Plaintiff and his son proceeded to knock, then bang loudly, on the door of Apartment 7C to get the attention of whoever had engaged the chain from the inside, presumably Winifred Mackins.

23. Plaintiff and his son got no answer and became concerned that something had happened to Winifred Mackins. They then proceeded back down to the lobby of the building and called Housing Police.

24. After some time, approximately five or six officers of the New York City Police Department (“NYPD”) arrived in the lobby, several of whom interviewed plaintiff and his son about the situation.

25. One of the officers took the keys to apartment 7C, with the consent of plaintiff’s son Mackins, and proceeded upstairs, while telling plaintiff and his son to remain in the lobby.

26. Upon information and belief, when the NYPD officers knocked on the door of apartment 7C, Winifred Mackins answered the door and told them that she had been sleeping.

27. These as-yet-unidentified NYPD officers, including, upon information and belief, defendants JOHN DOES 1-4, proceeded back downstairs.

28. JOHN DOE 1 was an African American man who, upon information and belief, held the rank of Sergeant in the NYPD.

29. Defendant JOHN DOE 1 came down to the lobby and, in a profanity laced tirade, berated plaintiff for trespassing and not being on the lease, which included saying, in sum and substance, “Only a m-f would do something like this... You’re not supposed to be in here!”

30. After several minutes of enduring this tirade from defendant JOHN

- DOE 1, plaintiff voiced his objection to being verbally abused and stated, in sum and substance, “You will not disrespect me... You will not treat me like a piece of garbage.”
31. In reaction to plaintiff’s verbal objections, another NYPD officer—JOHN DOE 2—slammed plaintiff against the wall and then down to the floor. Plaintiff heard a sickening “crack” sound to his right arm as it hit the ground.
32. Plaintiff, who suffers from asthma, became short of breath as a result of being violently forced against the wall and the floor. He gasped, stating in sum and substance: “I can’t breathe... please let me get my inhaler in my pocket.” Any and all defendants on the scene refused to allow him to use his inhaler.
33. Plaintiff was then handcuffed and transported to Woodhull Medical Center where he was diagnosed with a fractured elbow.
34. After being released from Woodhull Medical Center, plaintiff was transported to the local NYPD precinct.
35. While at the NYPD precinct, defendant NGAI photographed plaintiff and issued him a Desk Appearance Ticket under OLBS Arrest ID No. **K14645894** for violating New York Penal Law §140.10—Criminal Trespass in the 3rd Degree.
36. Plaintiff was released shortly thereafter.
37. The Kings County District Attorney’s Office declined to prosecute this charge, which is confirmed in a letter dated September 26, 2014.
38. Due to the violent acts of defendants NGAI and JOHN DOES 1-4, plaintiff suffered, *inter alia*, permanent injury and incapacitation to his right elbow.

39. Plaintiff continues to suffer from the painful and debilitating injuries caused on May 22, 2015.

FIRST CLAIM FOR RELIEF:
ASSAULT UNDER STATE LAW

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
41. On May 22, 2014, defendants NGAI and JOHN DOES 1-4, acted with the intent to cause plaintiff to fear for his own physical safety and to fear that violent contact was imminent by behaving toward plaintiff in an aggressive manner.
42. Defendants NGAI and JOHN DOES 1-4, acted with the intent to harass, annoy, and/or alarm the plaintiff.
43. Defendants NGAI AND JOHN DOES 1-4, acted voluntarily and with the intent and the desire to cause plaintiff to fear for his own physical safety and to fear that violent contact was imminent.
44. Defendants NGAI AND JOHN DOES 1-4, acted voluntarily and with the knowledge—with substantial certainty—that their actions would cause the plaintiff to fear for his own physical safety and to fear that violent contact was imminent.
45. Defendants NGAI and JOHN DOES 1-4 threatened to strike, shove, kick or otherwise subject plaintiff to physical contact with the intent to harass, annoy or alarm plaintiff.

46. Defendants NGAI and JOHN DOES 1-4 had the real and apparent ability to carry out their implied and explicit threats of violent contact.

47. As a result of Defendants NGAI and JOHN DOES 1-4 actions, plaintiff became apprehensive and feared for his own physical safety and feared that violent contact was imminent.

48. Defendants CITY OF NEW YORK are vicariously liable for the actions of Defendants NGAI and JOHN DOES 1-4 as these individual defendants were acting in furtherance of NYPD business and within the scope of NYPD authority.

49. At all times mentioned herein, the CITY OF NEW YORK is responsible for the plaintiff's injury and damages as NGAI and JOHN DOES 1-4 were acting in furtherance of NYPD business and within the scope of NYPD authority.

SECOND CLAIM FOR RELIEF:
BATTERY UNDER STATE LAW

50. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

51. On May 22, 2014, Defendants NGAI and JOHN DOES 1-4 intentionally made physical contact with plaintiff.

52. This physical contact was violent, offensive, and without plaintiff's consent.

53. This contact was without provocation.

54. This violent physical contact caused severe physical and psychological injuries to plaintiff.

55. Defendants NGAI and JOHN DOES 1-4 acted voluntarily and intentionally, and with the purpose of physically harming the plaintiff.

56. Defendants NGAI and JOHN DOES 1-4 struck, shoved, kicked or otherwise subjected plaintiff to physical contact.

57. Defendants NGAI and JOHN DOES 1-4 acted with the intent to cause plaintiff physical harm, and to harass, annoy or alarm plaintiff.

58. Defendant the CITY OF NEW YORK is vicariously liable for the actions of Defendants NGAI and JOHN DOES 1-4 as these individual defendants were acting in furtherance of NYPD business and within the scope of NYPD authority.

59. At all times mentioned herein, the CITY OF NEW YORK is responsible for the plaintiff's injury and damages as NGAI AND JOHN DOES 1-4, were acting in furtherance of NYPD business and within the scope of NYPD authority.

THIRD CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
UNDER STATE LAW

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. Defendants NGAI and JOHN DOES 1-4 conduct of May 22, 2014 was shocking and outrageous, exceeding all reasonable bounds of decency.

62. Defendants NGAI and JOHN DOES 1-4' conduct was intentional, and with the purpose to cause plaintiff severe emotional distress.

63. Defendants NGAI and JOHN DOES 1-4 acted voluntarily, and with the desire to cause plaintiff severe emotional distress.

64. Defendants NGAI and JOHN DOES 1-4' conduct was reckless, and with an utter disregard for the consequences that followed.

65. Defendants NGAI and JOHN DOES 1-4 struck, shoved, kicked or otherwise subjected plaintiff to physical contact.

66. Defendants NGAI and JOHN DOES 1-4 acted with the intent to cause plaintiff physical harm, and to harass, annoy or alarm plaintiff.

67. Defendants NGAI and JOHN DOES 1-4' conduct has caused plaintiff severe emotional distress.

68. Defendants CITY OF NEW YORK are vicariously liable for the actions of Defendants NGAI and JOHN DOES 1-4 as these individual defendants were acting in furtherance of NYPD business and within the scope of NYPD authority.

69. At all times mentioned herein, the CITY OF NEW YORK is responsible for the plaintiff's injury and damages as NGAI and JOHN DOES 1-4, was acting in furtherance of NYPD business and within the scope of NYPD authority.

FOURTH CLAIM FOR RELIEF:
VICARIOUS LIABILITY UNDER STATE LAW

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

71. At all times on or about May 22, 2014, Defendants NGAI and JOHN DOES 1-4 were acting within furtherance of NYPD business, and within the scope of their authority as Police detectives.

72. Upon information and belief, the incident complained of herein—the 42nd Precinct of the New York City Police Department—was and still is Defendants NGAI and JOHN DOES 1-4’ place of employment.

73. Upon information and belief, defendants NGAI and JOHN DOES 1-4 had a histories of violent and disturbing behavior, which, by their inaction, has been ratified and approved by NYPD and the CITY OF NEW YORK.

FIFTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, RETENTION AND/OR SUPERVISION
UNDER STATE LAW

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

75. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT (“NYPD”) has a duty to use reasonable care in the employment, training and supervision of its employees.

76. This includes a duty to investigate and find out whether employees are competent to do work without danger of harm to others.

77. The NYPD knew or should have known that Defendants NGAI and JOHN DOES 1-4 were incompetent, had vicious propensity, and/or have a bad disposition.

78. The NYPD could have easily anticipated the assault and battery of May 22, 2014.

79. The NYPD failed to adequately investigate and correct Defendants NGAI and JOHN DOES 1-4 disposition and propensity.

80. Because of this history, the attack of May 22, 2014 was a foreseeable consequence of NYPD' failure to adequately train, reprimand, or re-assign Defendants NGAI and JOHN DOES 1-4.

81. Because of NYPD' failure to take appropriate action, plaintiff has suffered the injuries claimed herein.

SIXTH CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. §1983

82. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

83. At the time of plaintiff's arrest, there was no credible evidence that plaintiff had committed a crime.

84. All of the aforementioned acts of the Defendant CITY OF NEW YORK, and the individual defendants and their agents, servants, and employees, were carried out under the color of state law.

85. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

86. The acts complained of were carried out by the aforementioned individual defendants, in particular NGAI and JOHN DOES 1-4, in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

87. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to their customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under supervision of said department.

88. The individual defendants, and defendant CITY OF NEW YORK, collectively and individually, while acting under color of state law, engaged in Constitutionally violative conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

89. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

SEVENTH CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. §1983

90. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

91. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.

92. As a result of the aforesaid conduct by defendants NGAI and JOHN DOES 1-4, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

93. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

94. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

EIGHTH CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT UNDER STATE LAW

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

96. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility, supervision, and authority of the NEW YORK CITY POLICE DEPARTMENT and its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.

97. At the aforementioned times and locations, plaintiff was detained and held under the imprisonment and control of the defendants NGAI and JOHN DOES 1-4 under false pretenses.

98. At the aforementioned times and locations, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested and imprisoned the plaintiff without warrant, authority of law or probable cause therefore.

99. That the acts and conduct on the part of the individual defendants constituting the false arrest and false imprisonment consisted in part of the following: unlawfully and intentionally detaining and confining plaintiff against his will and without his consent; unlawfully and intentionally detaining and confining plaintiff without privilege, probable cause or valid legal process; unlawfully detaining and confining plaintiff through the unlawful arrest of plaintiff; unlawfully detaining and confining plaintiff; unlawfully arresting plaintiff and placing his in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of plaintiff.

100. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

101. That plaintiff was conscious of the confinement.

102. That as a direct, sole and proximate result of the false arrest, imprisonment, and excessive force, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.

103. By the actions described above, the individual and municipal defendants caused plaintiff to be falsely arrested and/or falsely imprisoned plaintiff without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitution of the State of New York.

104. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

NINTH CLAIM FOR RELIEF:
NEGLIGENCE

105. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

106. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.

107. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

TENTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING of NGAI and JOHN DOES 1-4

108. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

109. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

110. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

ELEVENTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY UNDER MONELL ARISING FROM
UNCONSTITUTIONAL POLICIES AND CUSTOMS UNDER 42 U.S.C. §1983

111. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

112. Defendants NGAI and JOHN DOES 1-4 arrested and detained plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize the plaintiff's liberty, well-being, safety and constitutional rights.

113. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

114. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT, all under the supervision of officers of said department.

115. As a result of the aforementioned conduct of the defendant CITY OF NEW YORK, and the individual defendants, plaintiff's constitutional rights were violated.

116. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of

his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

117. As a result of the defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

DATED:

New York, New York
May 22, 2015

Respectfully submitted,

**The Law Office of
Christopher H. Fitzgerald**
Counsel for Plaintiff

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